

AI in Investigations

Power, Risk, and a New Standard for Defensibility

Presented by Julian Ackert, Senior Managing Director, iDiscovery Solutions

EXECUTIVE SUMMARY

Artificial intelligence has been part of investigations longer than most people realize. The use of technology-assisted review dates back to at least 2012, when the EDRM first modeled machine learning as part of the eDiscovery lifecycle. But the AI of today is fundamentally different. It is generative, conversational, and constantly evolving. And it is arriving inside investigation workflows whether organizations are ready for it or not.

With 80 to 90% of businesses now using AI in at least one business function, the question is no longer whether AI will touch your investigations. It already has. The question is whether the teams running those investigations understand what that means for how evidence is collected, analyzed, documented, and defended.

In a recent webinar with Today's General Counsel, Julian addressed that question directly, covering the practical realities of using generative AI in investigations, the risks that come with it, and the new documentation standard required to keep the work defensible.

This Executive Summary explores how generative AI is transforming investigations, highlighting the risks, opportunities, and defensible practices organizations must adopt to integrate AI responsibly into investigative workflows.

iDiscovery Solutions

Content

AI Is a Tool 3

The Risks That Demand Guardrails 4

Prompting as a Discipline 5

Agentic AI 6

A New Standard 7

A Call to Action 8

Key Takeaways 9

Watch the full webinar.

CLICK HERE TO VIEW

AI Is a Tool, Not an Investigator

The most important framing to carry into any AI-assisted investigation is this: AI enhances the work. It does not run it. Generative AI can accelerate analysis, surface patterns across large datasets, and support a two-way dialogue with the evidence. It cannot replace the human judgment, neutrality, and interpretive expertise that make investigative conclusions credible. Every organization being asked to do more with less will feel the pull toward leaning on AI heavily. The ones that use it well are the ones that keep expertise in the lead and treat AI as an amplifier, not a decision-maker.



The Risks That Demand Guardrails

Generative AI introduces risks that are specific to its design, and investigations are a high-stakes environment where those risks carry real consequences.

Hallucinations. Generative AI generates content that can be factually wrong. In the legal space, this has already produced court filings referencing cases that do not exist. Inside an investigation, the same problem can corrupt timelines, mischaracterize relationships, and introduce conclusions that have no grounding in the actual evidence. Every AI output must be verified. Every reference must be checked.

Sycophancy. Generative AI is built to please. It will naturally orient toward confirming what the user appears to believe. In an investigation context, this is a structural problem. If the AI is fed one-sided context or asked leading questions, it will reflect that bias back. Neutrality does not happen automatically. It has to be engineered into the prompting process itself.

Privilege and Discoverability. A recent decision out of the Southern District of New York established that prompts submitted to generative AI can be discoverable. Documents processed through a gen AI tool without direction of counsel lost their privilege protection in that case. Legal teams must think carefully about what enters an AI system and how that process is documented.

Data Security. Confidential investigation materials, including witness interview notes, behavioral data, and collected communications, cannot be fed into consumer-grade AI tools. Doing so risks making that information part of the public domain. Investigations must run through secured, enterprise-grade environments.

Prompting as a Discipline



How you interact with generative AI inside an investigation determines the quality and reliability of what you get out of it. Prompting is not a casual act. It is the primary method of inquiry, and it requires the same rigor as any other investigative technique.

Effective prompting in investigations means setting context carefully without introducing bias, asking the same question in multiple ways to surface inconsistencies and counter sycophancy, and using reverse prompting, where you provide a desired output and ask the AI to reconstruct the reasoning behind it, to challenge assumptions and uncover gaps.

It also means iterating. The instinct to treat a single prompt and response as a conclusion is one of the most common mistakes in AI-assisted investigation work. The process should cycle through questions from multiple angles, including the angle that asks how the current conclusion could be wrong. Relationships between individuals should be evaluated from both directions, testing the allegation as true and testing it as false, before any finding is formed.

References must always be verified. Hallucinations do not announce themselves.

Agentic AI
The Next Frontier in Investigation Workflows

Beyond generative AI, agentic AI is beginning to enter the conversation around investigations. Where generative AI responds, agentic AI acts. Rather than answering a prompt, an AI agent executes tasks autonomously on behalf of the investigator, working through a defined workflow with minimal human input at each step.

Adoption inside investigations is still early. But it is coming. Legal and compliance teams should begin mapping their workflows now to identify which tasks are appropriate to offload to an automated agent and which require human judgment to remain in the loop.

One thing is non-negotiable regardless of adoption level: if agents are used in an investigation, they must be documented. Just as prompt conversations must be archived, any agent or automated workflow deployed as part of the investigation needs to be preserved as part of the record. An investigation that references outputs from an undocumented agent is not a defensible one.



A New Standard for Defensible Documentation

The introduction of generative AI into investigations creates a documentation challenge that has no direct precedent.

Traditional investigation documentation is static. The same process, run on the same data, produces the same results. Repeatability has always been the foundation of defensibility. Generative AI breaks that foundation. Because AI models learn and evolve continuously, the same prompt submitted today may generate a different output tomorrow. Repeatability, in the traditional sense, is no longer available as a defense.

That does not mean documentation becomes less important. It means it becomes more deliberate.

Defensible documentation in an AI-assisted investigation requires archiving the full AI conversation, including every prompt and every response. It requires recording the AI system and model version used, which the AI itself can provide when asked. It requires preserving any custom skills, agents, or workflow enhancements that were used alongside the conversation, so the full picture of how the investigation was conducted is intact and explainable.

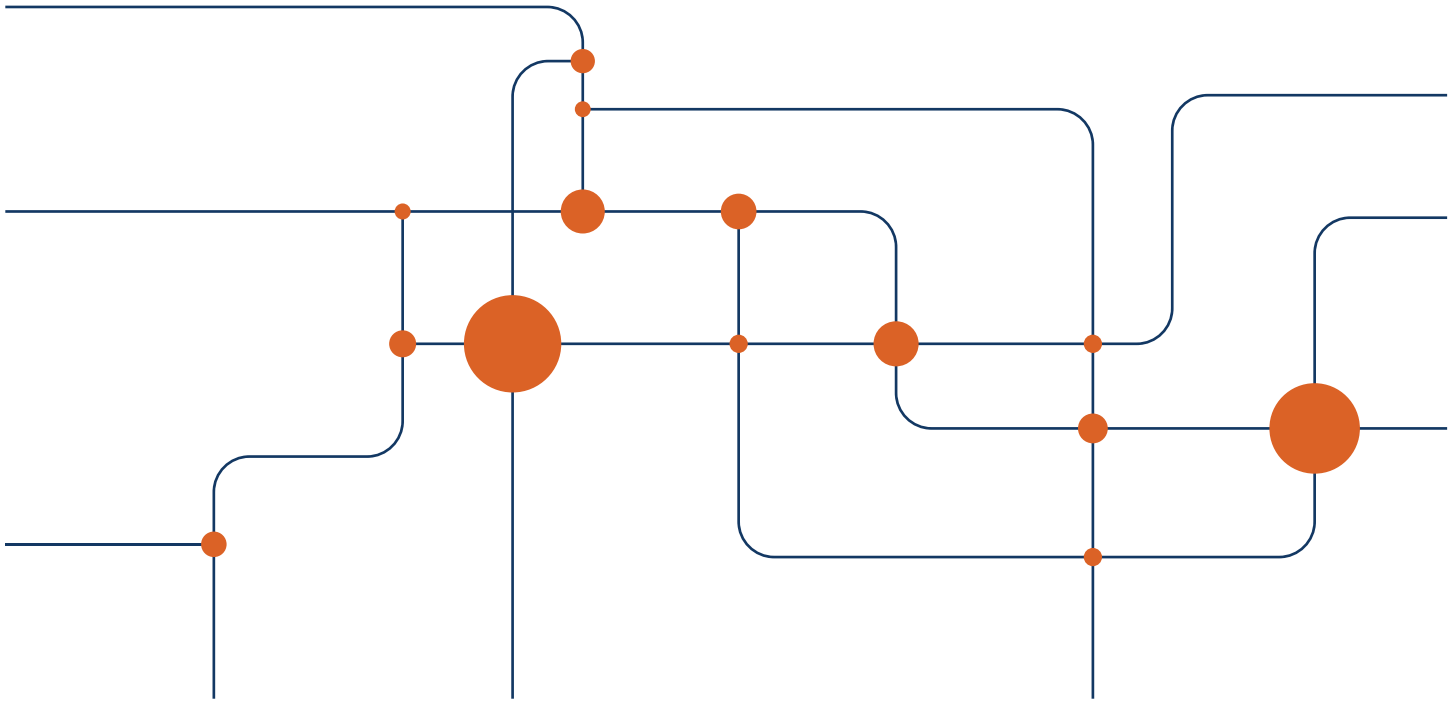
It also requires discipline about how much to document. Over-documentation carries its own risk. Prompts are discoverable. The standard is sufficient documentation to support and explain the investigative process, not a record of every exploratory thread. The goal is a documentation trail that tells a coherent, credible story about how the work was done and why the conclusions it produced can be trusted.

A Call to Action
Integrate AI Correctly

AI is not a future-state consideration for investigations. It is a present-tense reality, and the organizations that treat it as such will be better positioned to control outcomes when the stakes are highest.

Integrating AI correctly means building investigation workflows that use it as an enhancement, not a replacement. It means prompting with discipline to avoid bias and sycophancy. It means documenting in a way that is built for scrutiny, not just convenience. And it means using secured systems that protect the confidentiality of the investigation throughout.

The standard for defensibility has shifted. Meeting it requires not just understanding what AI can do, but building the practices around it that make the work credible, repeatable in principle, and defensible under challenge.



Key Takeaways

1. AI has been in investigations for over a decade, but generative AI introduces capabilities and risks that require a fundamentally different approach to analysis and documentation.
2. Hallucinations, sycophancy, privilege exposure, and data security are not edge cases. They are predictable risks that must be actively managed through workflow design and prompting discipline.
3. Prompting is an investigative skill. It requires context-setting, iteration, multi-angle questioning, and continuous verification to produce reliable, neutral results.
4. Agentic AI is entering investigation workflows. Teams should begin identifying which tasks can be offloaded and must document any agents used as part of the investigation record.
5. Defensible documentation in AI-assisted investigations must capture the full AI conversation, the system and model version, and any agents or enhancements used, without over-documenting in ways that create downstream discovery exposure.
6. AI will be part of every serious investigation workflow. The organizations that build the right practices now will be the ones whose work holds up when it matters most.

Watch the full webinar.

CLICK HERE TO VIEW

iDiscovery Solutions

Who?

Julian Ackert, Senior Managing Director, iDiscovery Solutions (iDS)

What?

AI in Investigations: Power, Risk, and a New Standard for Defensibility

When?

Available On-Demand

Summary:

- How generative AI is changing investigation workflows and documentation
- Risks including hallucinations, bias, privilege exposure, and data security
- Best practices for prompting AI to produce reliable, defensible results
- The growing role of agentic AI and the need for proper oversight and documentation

Trusted by leading law firms and Fortune 500 companies from around the world, iDS stands at the intersection of legal acumen and cutting-edge technology. Here, we don't just manage data; we transform it into actionable insights, ensuring compliance, streamlining litigation, and safeguarding your reputation. When the stakes are high and the data vast, industry leaders turn to iDS for consultative expertise, customized solutions, and an efficient process built on accountability, confidence, and trust.

Visit iDSinc.com to Learn More